

Code of Civil Procedure section 473.5 allows a party to bring a motion to set aside a default entered against the party where “service of a summons has not resulted in actual notice to a party in time to defend the action.” Code Civ. Proc. § 473.5(a). The motion “shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect.” *Id.* § 473.5(b).

Independent of the validity of the service, Defendant has demonstrated a lack of actual notice in time to defend the action which was not caused by Defendant’s avoidance of service or inexcusable neglect.

4. Mistake, Inadvertence, Surprise, Or Excusable Neglect.

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from “his or her mistake, inadvertence, surprise, or excusable neglect.” Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480 (“*Rivercourt*”). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt, supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

The Court need not consider this separate ground for relief in light of the findings above.

Disposition

The Court finds and orders as follows:

1. For the reasons set forth above, the Court is inclined to grant the Motion to Set Aside Default. However, it appears that Plaintiff may not have received proper notice of the hearing date and time.
2. In the exercise of its discretion, the Court *sua sponte* continues this matter to **July 13, 2026**, at **9:00 am**, in **Department 34**. The Clerk is directed to serve all parties with this order, with notice of the continued hearing date and time.
3. The parties are ordered to meet and confer regarding the relief sought by the motion in light of the Court’s expressed tentative ruling. If resolved through such meet and confer efforts, the parties may file a stipulation to set aside the Default and Default Judgment and for Defendant to file a responsive pleading within ten (10) days of notice of entry of any order approving such stipulation.

17. 9:00 AM CASE NUMBER: N23-0180
CASE NAME: THOMAS BUTT VS. EDUARDO MARTINEZ
***HEARING ON MOTION IN RE: TAX OR STRIKE COSTS**
FILED BY: BUTT, THOMAS
TENTATIVE RULING:

Petitioner and plaintiff Thomas Butt (“Petitioner”) filed a Motion to Strike or Tax Costs on February 9, 2026 (the “Motion to Tax Costs”). The Motion to Tax Costs was set for hearing on June 22, 2026.

Background

A judgment was entered on January 20, 2026 (the “Judgment”). The Judgment determined that

defendants and respondents (“Defendants”) are the prevailing parties, after a Motion for Judgment on the Pleadings as to Petitioner’s Verified Petition was granted without leave to amend. See Judgment, p. 2.

Thereafter, a Memorandum of Costs was filed by defendants on February 9, 2026 (the “Memo of Costs”). The Memo of Costs seeks an award of \$3,400.19 in total costs.

Petitioner then brought this Motion to Tax Costs.

No opposition has been filed.

Analysis

When awarding costs, a court must apply the following principles: (1) costs are allowable if incurred, whether or not paid; (2) allowable costs must be reasonably necessary to the conduct of the litigation, not merely convenient or beneficial to its preparation, and (3) allowable costs must be reasonable in amount. See CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) (“CJER Civ. Pro.—Trial”), § 16.17; see Code Civ. Proc. § 1033.5. If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. *Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 338; see CJER Civ. Pro.—Trial, § 16.18. Moreover, Plaintiff is entitled to recover expenses beyond those allowable in Code of Civil Procedure section 1033.5, by virtue of, at the very least, the parties’ settlement agreement.

The Motion to Tax Costs takes issue with three cost items (the “Cost Items at Issue”):

1. **Cost Item 1 in the Amount of \$495 for Filing and Motion Fees.** Petitioner contends that these are not recoverable because “these fees are waived by statute for public entities and thus not incurred.”
2. **Cost Item 9 in the Amount of \$1,754.36 for Court-Ordered Transcripts.** Petitioner asserts that “no transcripts were ordered by the Court”
3. **A Portion of Cost Item 14 in the Amount of \$243.00 for Fees for Electronic Filing or Service.** Petitioner contends that “the claimed personal service expense is not an electronic filing or service fee and is improperly included in this category.”

Disposition

The Court finds and orders as follows:

1. The Motion to Tax Costs is CONTINUED to **August 31, 2026, 9:00 am**, in **Department 34**.
2. The parties are ordered to meet and confer **within thirty (30) days** regarding the Cost Items at Issue.
3. As to any of the Cost Items at Issue which Defendants do not agree should be stricken, Defendants shall file a declaration under penalty of perjury setting forth the basis for the recovery of the cost item(s). Such declaration shall be filed and served no later than **August 10, 2026**. Any response by Petitioner shall be filed and served no later than **August 24, 2026**.
4. The Court shall issue the order after hearing.

18. 9:00 AM CASE NUMBER: N25-1244
CASE NAME: MALINA CURIALE VS. RUBY LIU
HEARING IN RE: MOTION TO SET ASIDE VOID JUDGMENT
FILED BY:
TENTATIVE RULING:

Respondent Ruby She Liu's Motion to Set Aside Void Judgment is **DENIED**.

Background

This is a Civil Harassment Restraining Order (CHRO) proceeding filed by Petitioner Malina Mae Curiale against Respondent Ruby She Liu.

On September 2, 2025, then-Commissioner Verriere conducted an evidentiary hearing with both parties present, considered the testimony of the parties and other evidence submitted, and granted a CHRO against Respondent.

Respondent filed both an appeal of the September 2 order and a Motion to Vacate the order. On October 31, 2025, Judge Marquez denied the Motion to Vacate on all grounds, including Respondent's contention that Commissioner Verriere lacked jurisdiction to proceed in the absence of a stipulation of the parties. Respondent filed a notice of abandonment of the appeal on November 4, 2025.

On November 26, 2025, Respondent filed a motion for reconsideration of Judge Marquez's October 31 order, again raising the commissioner's jurisdiction and asserting newly discovered evidence. That motion was set for hearing on December 30, 2025 and continued several times before Judge Marquez heard and denied it on April 27, 2026.

On March 2, 2026, while her motion for reconsideration was still pending, Respondent filed the instant motion to set aside void judgment under Code of Civil Procedure section 473(d).

Respondent moves to set aside the September 2, 2025 order as void under Code of Civil Procedure section 473(d), contending that Commissioner Verriere lacked subject matter jurisdiction because *Petitioner* was purportedly never properly advised of her right to consent or object to proceedings before a commissioner, and did not consent. On that basis, Respondent contends that no valid bilateral stipulation was formed and the CHRO is void. Respondent requests dismissal of the underlying petition with prejudice and removal of the matter from the CLETS system.

Analysis

Although Respondent styles her motion as one to set aside a void judgment under Code of Civil Procedure section 473(d), the nature of a motion is determined by the relief sought, not the label attached to it. (*California Correctional Peace Officers Assn. v. Virga* (2010) 181 Cal.App.4th 30, 43.) Because the instant motion seeks the identical relief as Respondent's prior Motion to Vacate and Motion for Reconsideration, vacatur of the September 2, 2025 order, Respondent's motion under Code of Civil Procedure section 473(d) is properly construed a renewed motion governed by Code of